

Nawab Ali v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 7 June 2012 · Writ - C No. 29584 of 2012 · **Writ disposed of; four instalments under clause 6.14; recovery stayed; review rejected.**

HEADNOTE

Clause 6.14 of the U.P. Electricity Supply Code, 2005 permits instalment facility for consumers in financial distress. The petitioner having offered to pay and the licensee having no objection, the Court directed the demanded electricity dues to be paid in four equal instalments, stayed recovery pending each deposit, and provided that default would revive recovery of the entire amount. A later review by successor counsel was rejected as not maintainable.

FACTUAL SUMMARY

Nawab Ali took a 5 kW electricity connection. On 6 April 2010 a trap found him using 15 kW; an FIR followed and an ex parte assessment levied penal charges from the date of connection. Recovery citation dated 16 May 2012 demanded Rs 7,06,426 plus interest and recovery charges. He sought to quash the citation and restrain coercive recovery, pleading poverty and willingness to pay in instalments. The department had no objection to instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 provides that the Executive Engineer or any officer higher in rank may extend instalment facility to consumers in financial distress. The petitioner being ready to pay and the licensee having no objection, the Court directed the entire billed amount to be paid in four equal instalments (31.07.2012, 31.10.2012, 31.01.2013 and 30.04.2013), stayed recovery pending each deposit, and provided that default in any instalment would restore the respondents' right to recover the entire amount. ¶ 5-6

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Applied clause 6.14 because the consumer pleaded poverty and inability to pay the lump sum while remaining willing to clear the dues; the Court itself fixed four equal instalments rather than remitting him to apply to the Executive Engineer. ¶ 5

installment-payment-clause-6.14 Payment of the recovery citation was structured as four equal instalments with stay of recovery continuing only so long as each instalment was deposited on time. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE TRAP, FIR, AND EX PARTE PENAL ASSESSMENT FROM THE DATE OF CONNECTION

The Court did not examine the assessment on merits; it only structured payment of the demanded sum. ¶ 3-5

NOT DECIDED — QUASHING OF THE RECOVERY CITATION DATED 16.05.2012

The citation was not quashed; recovery was stayed only pending instalment compliance. ¶ 5-6